

No.	Case Number	Case Name	Type of Matter	Probate Notes
				4. <i>Item 3c of the Petition is incomplete. The address of decedent's residence at time of death is required.</i> 5. <i>Item 8 of the Petition does not provide the name of the trust beneficiaries. (See Super. Ct. San Luis Obispo County, rule 11.303(c).) Without this information, the court cannot determine if notice has been correctly provided under Probate Code section 1208.</i> 6. <i>The Court requires a completed Duties and Liabilities of Personal Representative form. (Prob. Code § 8404.)</i> 7. <i>The presumption under Probate Code §6112 subsection (c) appears applicable affecting the burden of proof that the devise was procured by duress, fraud, or undue influence because one of the witnesses is the proposed personal representative and a potential beneficiary under the Trust. The Trust is the ultimate beneficiary of the Will. Petitioner will need to explain why the presumption does not apply, or rebut the presumption.</i>
<u>The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:</u>				
7	23PR-0079	In Re: Janice A Pankey Trust dated 9/12/2012	Petition Filed 5/28/2025 - for Approval of Settlement Agreement and Mutual Release; cont'd 7/22/25, 10/21/25, 11/4/25, 5/5/26, 6/2/26	APPROVED LIST: <i>It is recommended the Court proceed with approval of this Settlement Agreement and notes the following as to each Objection and why said objection is either resolved or overruled:</i> 1. <i>Objection by Mr. VanderKelen (6/26/25). This Objection centers around the waiver of account to be presented by prior co-trustees and agent under a power of attorney. Per the terms of the Settlement Agreement, section 9, Chadburn and Brice, individually, agreed to waive an account "as sought by their petition". (Referring to March 15, 2024</i>

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				<i>Petition to Compel Accounting.) They are dismissing their Petition as part of this Settlement Agreement. The Court, on November 26, 2024 signed an order requiring an account from Kendra Sabi to be filed for her time as agent under the power of attorney for Jancie Pankey-Tannehill. Nothing in the Settlement Agreement binds or waives the November 26, 2024 accounting Order as to Mr. VanderKelen as current Trustee and personal representative of the estate.</i> <i>For unclear reasons, the proposed order presented with this Petition, paragraph 16, indicates the Court will vacate its prior orders compelling accounts from Ms. Sabi. Again, nothing in the actual Petition to Approve the Settlement Agreement or the Settlement Agreement itself contains this language. As such, it is recommended to be stricken from the proposed Order.</i> <i>The Account is still due, as Mr. VanderKelen has not waived the necessity of the accounts as the current fiduciary of the Trust and personal representative of the probate estate. It is noted that Mr. Vanderkelen has received informal accounts, but not ones filed with the Court as ordered in the November 26, 2024 Order. It is unclear if Mr. VanderKelen is willing to accept these accounts, but that issue is not before this Court for this particular Petition to Approve the Settlement Agreement.</i>

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				2. <u>Objection by D. Leonard (7/18/25)</u>. This objection was based on an appeal that is no longer pending. As such, it does not appear the Objection is at issue any longer. It is noted Mr. Leonard has a Motion for Judgment on the Pleadings set on November 4, 2026, that is related to the original April 6, 2023 Petition for which this Settlement Agreement is based. Per the terms of the Settlement Agreement, the original Petition will be dismissed as to all Parties, but not as to Mr. Leonard. As such, his Motion may proceed on the December date as planned. This Objection is recommended to be overruled. 3. <u>Objection by Ramsbacher Prokey Leondard LLP (7/17/25)</u>. This objection alleges the matter may not be settled, because it has a pending creditor of the settlor's probate estate and said claim must be paid. First, this is the Trust matter. The Objector's Creditor claim against the probate estate is still pending and has not been settled as due. The Estate file currently indicates the estate holds sufficient amounts to resolve the claim of the Objector as presented, once determined. Second, the Settlement Agreement's terms, do not indicate creditors in general will not be paid. Rather, the terms only provide for distribution of a small amount of assets to certain parties immediately, and then the plans for the ultimate distribution after administration of the Trust is complete after payment of expenses per the terms of

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				<i>the Trust. (See Settlement Agreement, Section 3.B.3., Revocable Trust, dated Sept. 12, 2012, Section 9, Payment of Debts, Expenses and Taxes.) Nothing in the Petition or Settlement Agreement indicates trust administration would not be completed, with payment of any proven expenses per the terms of the Trust, before distribution. As such, it is recommended this Objection be overruled, as the settlement of ultimate distribution between beneficiaries after administration, will not affect the creditor claim payment, if proven.</i> 4. <u>Supplemental Objection by Ramsbacher Prokey Leondard LLP and Dennis Leonard, as an individual, (10/2/25).</u> This “Supplemental Objection” raises an issue with the Guardian ad Litem, which was addressed via the separate affirmative Petition of the same nature. That Petition was resolved by the Ruling dated July 9, 2026. This Objection is recommended to be overruled.
10	23PR-0193	Estate of: Torey Rolland	Petition [DUE: 8/03/2026] **Settlement Status Conference** Filed: 7/24/2023; Will Contest (Lottie Martin); c/f 9/12/23, 10/24/23, 5/07/24, 11/05/24, 6/10/25,	APPROVED LIST: *UPDATE* <i>The underlying Petition for Probate to appoint Perrie Rene Kesner as personal representative, with the following modifications:</i> 1. <i>Item 3e(1) of the Amended Petition is checked indicating the will waives bond. It appears that the will waives bond only for the nominated executor. Waivers of Bond signed by the beneficiaries were not located. It is noted that the parties stipulated to waive bond for the appointment of Perrie Rene Kesner as</i>